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SORTING OUT BIOPOLITICS

In political studies, the term “biopolitics” has of late had a prosperous but somewhat confusing career. The confusion is that it has been used, plausibly enough in each case, to refer to two different—indeed, more nearly oppositional—concepts. The one more popular (for now at least) in my subdiscipline of political theory is dedicated to pursuing the proposal of Michel Foucault that a fundamental shift toward “biopolitics” occurred in the self-image of the state in and around the eighteenth century. This shift was from associating sovereign power with death—with the erratic but spectacular physical punishment of transgressing bodies otherwise left alone—to associating it with life—with the perpetual molding and surveillance of subjects through cradle-to-grave institutions (schools, hospitals, barracks, etc.) employing scientific measurement to define and enforce normalcy. Elsewhere, in the more quantitatively oriented social sciences, “biopolitics” was vetted decades ago to refer to a proposed unification of political studies with the research program of evolutionary biology. The sort of interdisciplinary synthesis regarded as a pressing necessity by practitioners of this “biopolitics” would probably be regarded by most of the previously adduced critical theorists as evidence of disciplinary Foucauldian “biopolitics” run riot. This bifurcation shows, depending on one’s attitude, either the fateful schizophrenia or wonderful diversity of political theory: tugged back and forth between the statistics- and equation-driven positivism of political science, and the anti-positivist critical theory that animates literary and cultural studies like Eric Santner’s challenging new book *The Royal Remains*.

Santner takes Foucault’s conceptualization as his jumping-off point: “the *biopolitical pressures* generated by the transition from royal to popular sovereignty in the wake of the French Revolution and the long struggle to reconstitute the ‘physiology’ of the body politic over the course of the nineteenth century” (xi). But his interest is less in how sovereign power functions practically than in how it functions in the collective imagination: “our capacity to feel represented in the

social field, to experience those representations as *viable facilitations of our vitality*" (xiv). He transposes Ernst Kantorowicz's historical argument in his seminal work *The King's Two Bodies* (1957) – that a Western political theology developed in the Middle Ages around the concept that the monarch was simultaneously a fleshly body subject to decay and death and a transcendent spiritual body symbolic of eternal majesty – into the modern age. Now the sovereign people, represented by the nation-state, have this same two-body problem (or promise), but the noncorporeal element has changed. Or has it? "Postmonarchical societies," he writes, face "the problem of *securing the flesh* of the new bearer of the principle of sovereignty, the People," who "come to be both blessed and plagued by a *surplus of immanence*" (xv, xxi) inscribed in this "flesh." Santner's "flesh" is not purely carbon-based, and he uses it to undermine rather than support narratives of modernization such as secularism and materialism. It is a "dimension specific to human existence, albeit one that seems to push thinking in the direction of theology... a mode of *exposure* that distinguishes human beings from other kinds of life"; what we are exposed to is "an ultimate lack of foundation for the historical forms of life that distinguish human community." This "*crucial missing piece of the world*" is a signifier "not so much of biological as of *ontological vulnerability*, a vulnerability that permeates human being as that being whose essence it is to exist in forms of life that are, in turn, contingent, fragile, susceptible to breakdown" (5-6).

Thus described, Santner's "flesh" reads to me less like an expansion of Foucauldian biopolitics than a return to the *angst* of existentialism. That humans, alone among the animals, experience "ontological vulnerability" based on awareness of our contingency and fragility is a familiar notion. How does "flesh" let us see it in a new way? In Heidegger – and for the most part, heirs like Sartre and Beauvoir as well – this begins as an individual experience and only later takes on a collective meaning. Indeed, in *Being and Time* authentic individual *angst* at first must direct itself against the claims of the collective. For Santner, however, this "flesh"-ly vulnerability is collective all the way down. "A central problem for secular modernity," he writes, "is how to account for the flesh once it no longer functions as that which, so to speak, 'fattens' the one who occupies the place of power and authority, elevating the body that thereby comes to figure as its naturally – because supernaturally – appointed caretaker" (33). This former tribute-fat, in a world where we have killed the king, becomes a "surplus" that we are not sure what to do with. Santner describes it as "the surplus secreted where biological existence is converted into the minimal office that entitles and enjoins one to 'enjoy' life"; this "surplus element" taken on by "the bodies of the citizens of modern nation-states... challenges the entire ideology of disenchantment and secularization and... introduces into immanence an excess it cannot fully close in upon" (58, 98). He employs Hannah Arendt's analysis of the paradox of modern statelessness (48ff.): the entanglement of one Enlightenment concept, universal human rights, with another, national self-determination, has its dark mirror-image in the body that, excluded from citizenship for whatever reason, is thereby not even allowed bare existence.

Clearly the interests of Foucauldian "biopolitical" studies are reflected in all sort
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of troubling aspects of the modern world. But I am eager to read in greater detail how Santner thinks his conceptualization of “flesh” helps explain them—or, explains them better than other explanations, or better than the writings of Schmitt, Foucault, Agamben, etc. already on offer. Santner says that “modern societies are governed by a *bioethics of immunization*, one undergirded by a theory of sovereignty” (7, 16). This much, at least, does seem to be the case: the idea of social contract theory that the modern state’s basic obligation is to ensure the physical safety of its population, an idea originally meant to disengage politics from seemingly irresolvable religious conflict, does not necessarily work to minimize governmental intrusion in the manner promised. The United States now imprisons people at a rate comparable to apartheid South Africa or the Soviet Union under Stalin. Not only poverty but permanent entanglement with a prison-industrial complex is now a central, multi-generational aspect of the social texture of certain marginalized communities. The purportedly irresistible imperatives of globalization and its world market on the one hand occasion the nervous and angry building of walls and provisioning of border vigilantes on the other. Terrorism, or the perpetually stoked fear thereof, threatens to turn swaths of the Constitution into the mere “paper barrier” Alexander Hamilton spoke of. Perpetual states of emergency justify legal-netherworld holding pens at Guantanamo Bay and, in a different but related sense, Lampedusa, the Mediterranean island where thousands of Africans seeking entry into Europe via Italy are kept. Yet to use these trends to make sweeping claims about the “immunological” nature of modernity would be just as unwarranted as hiding them under the table on which rests our narratives of freedom and progress. America’s gulag, for example, is entirely untypical of modern states at comparable levels of development. Indeed, it seems to represent not the triumph of the reformist Benthamite Panopticon that fascinated Foucault—the New England penitential model—but rather the re-emergence in a new form of the plantation system of the old Confederacy. Even to speak of the “modern nation-state”—though this is of course a necessary locution—may occlude important elements of how what Santner is talking about plays out politically.

Let us take as a refined metric Hegel’s tripartite division of the sociopolitical world—family, civil society (by which he meant the market), state. The major reformist projects that animate Foucault’s genealogies were essentially attempts to merge the spheres together and subordinate them under one new, master political imperative, whether it was the purified national will of Jacobinism or the greatest-happiness calculus of Benthamism. The left-libertarian Foucault here agreed with conservative traditionalists that there is a fairly straight line running from such plans to Auschwitz and Kolyma. Whatever one makes of that allegation, it is at least plausible that modern examples of treating people as mere stuff—as just “flesh,” literally—which run in stark contrast to the concurrent modern promotion of inalienable natural rights, is a moral hazard inherent in such mass-calculation politics, whether Rousseau’s or Bentham’s. But is it specific to the post-Reformation West? It is true that only in the eighteenth and nineteenth century did reliable techniques develop for measuring a population as to the various metrics examined by Foucault. But the wish to make politics like mathematics is an older one; the dream to make society a smoothly functioning

machine antedates the machine age. (How does a proponent of the position that modernity invents biopolitics explain Plato's eugenic *Republic*?) On this question, perhaps, the distinction between the modern and the pre-modern is less germane than an older differentiation—going back, in the West, at least to Aristotle's critique of Plato—between mixed and unitary regimes.

The "mixed regime" of America's *Federalist Papers* refers to a division of power between executive, legislature, and judiciary—this was a reimagination, via Montesquieu and other Enlightenment thinkers, of the ancient Roman position that the good polity mixes elements of democracy, aristocracy and monarchy. But before this came Aristotle's accusation in his *Politics* that Plato had improperly tried to absorb family into state, or make of the state a family of everyone, where the two are, by nature, entirely different spheres of human interaction. Humans appear differently—indeed, one might say, *are* fundamentally different entities—at different levels of social integration. For example: I am meaningful to my family simply because I am myself, a unique person with a context and story that is not repeatable by anyone else, ever. But I am meaningful to the state because I am (ideally) exactly the same as everyone else, in the sense of possessing identical rights and duties by virtue of the citizenship I share with them. And I am meaningful to the capitalistic marketplace only insofar as my abilities make me of use to possessors of resources and consumers of services. For Hegel, all three levels need to be present and in balance for an ethical freedom to be instantiated. A market open to talents obviates the tendency toward closed hereditary castes, and forces us to produce goods for everyone (i.e. not just those in our tribe/bloodline). But unregulated markets tend to end up treating people like isolated and disposable things—thus Hegel's state is a higher unity that, having insured that freedom partially enter the realm of the family, must also insure that the familial principle of unconditional love partially enter the realm of the market (through what we would now call "welfare state" or "safety net" policies).

The moral hazard inherent in treating human beings as mere physical bodies can be seen, using this optic, as a result of the principles of one sphere improperly absorbing or entering the others. Thus, a top-down eugenics policy (even if democratically approved) can be accused of improperly using the state to enforce the market principle of usefulness. We would be horrified to hear of a household where children were fed in proportion to their contribution to pooled family income, or proficiency at homework. Yet we take such a system of human relations for granted as the animating principle of capitalism. For decades a powerful political movement in the United States has successfully convinced a nontrivial amount of the electorate, and tried to govern on the principle, that in this matter the state should simply ratify and enable market principles. Down that road is the "flesh" that worries me—and I will gladly take biopolitics over the telling "Let him die!" of the Republican primaries.

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Schulman, Alexander. "Sorting out Biopolitics," in *Journal for Cultural and Religious Theory* vol. 12 no. 1 (Spring 2012): 22-25.